

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Order Denying Motion to Dismiss as Moot Entered May 20, 2026

The City moves to dismiss this interlocutory appeal as moot because the February 14 event emphasized in the preliminary-injunction proceedings has occurred. The Guild responds that the same ordinance and injunction govern a six-event series with four announced dates remaining. Upon consideration of the motion, response, and record, the motion is denied.

A live controversy persists. The preliminary injunction expressly covers the Guild's announced 2026 Cedar Commons fairs, not one event alone. The record identifies the June 13, August 8, October 10, and December 12 dates and describes recurring program decisions made before each event. The Paid-Speaker Permit Ordinance remains in force, the City continues to challenge the injunction, and the Guild continues to claim protection from the same lead-time, disclosure, fee, and conditioning provisions.

The requested appellate relief would immediately alter administration of those remaining events. That prospective effect supplies concrete stakes for both parties throughout appellate review.

The passage of February and April does not eliminate the parties' concrete adversity. The City's requested appellate relief would alter the regime governing the remaining dates. The Guild's injury theory concerns invitations, budgets, and approval uncertainty that arise before a program is final, not merely a completed denial on an event day. Those features are documented in the preliminary record and repeat within the same calendar series.

The Court's published recurring-event analysis in *Robinson v. National Collegiate Athletic Association* counsels attention to the continuing policy and relationship rather than artificial isolation of one expired date. We need not decide every outer boundary of recurrence. This case involves the same parties, ordinance, site, injunction, and announced events during the appeal. The district action's continued pendency does not make the interlocutory controversy advisory.

Nor does the City's compliance during the first events voluntarily end the dispute. The City seeks reversal of the order that required that compliance and has not disavowed later enforcement if the restraint is removed.

No supplemental factual record is required to resolve the motion. The City does not assert that the ordinance has been repealed or that the remaining dates were abandoned. Any later operational development may be addressed through the ordinary procedures if it becomes material to relief, but jurisdiction does not turn on a new denial for each scheduled fair.

The parties remain adverse over an order that presently controls the City's administration and the Guild's planning. That practical effect is neither conjectural nor retrospective.

The motion to dismiss is DENIED. This order resolves only mootness and expresses no view on the merits of the preliminary injunction, the Rule 65 issues, or the proper disposition. The appeal will proceed on the existing schedule.

Entered at the direction of the panel on May 20, 2026. The Clerk shall provide immediate electronic notice to counsel.